

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
KEVIN FANEUS,**SUMMONS**

Plaintiffs, Index No.:

-against-

The Basis of Venue is:
Location of IncidentNYPD DETECTIVE ADAM GIERLACHOWSKI, Shield
No. 3663, NYPD DETECTIVE JAMES LUKESON,
Shield No. 3515, and NYPD POLICE OFFICERS
JOHN/JANE DOE NUMBERS 1-10,Plaintiff designates Kings
County as the place of trial.Defendants.
----- X**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 3, 2022

Yours, etc.

Cary London

Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: DET. ADAM GIERLACHOWSKI, 1086 Simpson Street, 3rd FL, Bronx, NY 10459
DET. JAMES LUKESON, 67 PCT, 2820 Snyder Ave, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KEVIN FANEUS,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

NYPD DETECTIVE ADAM GIERLACHOWSKI, Shield
No. 3663, NYPD DETECTIVE JAMES LUKESON,
Shield No. 3515, and NYPD POLICE OFFICERS
JOHN/JANE DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs KEVIN FAENUS, by his attorneys, Shulman-Hill, PLLC, as and for their
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. On July 7, 2019, at approximately 4:00 p.m., plaintiff, while lawfully at or in the vicinity of 2069 Nostrand Avenue, County of Kings, State of New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City Police Officers. In addition, Plaintiffs suffered physical, mental and emotional injury. Plaintiff was unlawfully imprisoned for approximately five (5) days and suffered injury from being punched and generally arrested with excessive force. Plaintiff was deprived of their Federal Constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and denied their right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff KEVIN FANEUS is a resident of the state of New York.

3. NYPD DETECTIVE ADAM GIERLACHOWSKI, Shield No. 3663, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. NYPD DETECTIVE ADAM GIERLACHOWSKI, Shield No. 3663, is being sued in his individual and official capacities.

5. NYPD DETECTIVE ADAM GIERLACHOWSKI, Shield No. 3663, was at all times relevant herein assigned to the 67th Precinct.

6. NYPD DETECTIVE ADAM GIERLACHOWSKI, Shield No. 19124, is currently assigned to Transit District 12.

7. NYPD DETECTIVE JAMES LUKESON, Shield No. 3515, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

8. NYPD DETECTIVE JAMES LUKESON, Shield No. 3515, is being sued in his individual and official capacities.

9. NYPD DETECTIVE JAMES LUKESON, Shield No. 3515, was at all times relevant herein assigned to the 67th Precinct.

10. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

11. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.

12. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 67th Precinct.

13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On July 7, 2020, at approximately 4:00 P.M., Plaintiff was lawfully outside the building at 2069 Nostrand Avenue, County of Kings, State of New York, when defendant Officers unlawfully stopped, body-slammed, questioned, strip-searched, and falsely arrested Plaintiff without probable cause or legal justification.

17. On the abovementioned date, Plaintiff was approached by defendant officers without legal justification or cause.

18. Plaintiff did not possess drugs, contraband, or drug paraphernalia of any kind, nor was Plaintiff committing or about to commit any crime.

19. Nevertheless, defendant officers grabbed Plaintiff to the ground without reasonable suspicion, probable cause, or any basis to detain him.

20. Plaintiff did not resist arrest or otherwise obstruct officers in the course of their attempts to arrest him.

21. Plaintiff was then handcuffed, searched, and transported to the 67th Police Precinct in the absence of probable cause.

22. At the 67th Police Precinct, Plaintiff was searched again, as well as fingerprinted and photographed before being placed in a holding cell.

23. Defendant officers ordered Plaintiff into the holding cell bathroom and made him remove his clothing.

24. When Plaintiff questioned why he was being strip searched, defendant officers slammed Plaintiff's head into the wall and dragged him into the holding cell bathroom.

25. Defendant officers removed Plaintiff's clothing and strip searched him in the holding cell bathroom.

26. Plaintiff suffered abrasions, bruising and lacerations from the excessive force and brutality of defendant officers at the precinct.

27. On information and belief, on July 7th or 8th, 2020, defendant GIERLACHOWSKI falsely informed prosecutors in the Early Case Assessment Bureau of the Kings County District Attorney's Office that Plaintiffs had been in possession of a firearm.

28. Defendant GIERLACHOWSKI also swore out a complaint with the same false allegations on July 8, 2019, which itself contained other false statements from other defendant officers, including defendant LUKESON.

29. On July 8, 2019, defendant GIERLACHOWSKI's false complaint was presented and filed with the Kings County Criminal Court by Assistants with the Kings County District Attorney's Office during the Plaintiff's arraignment.

30. As a result of the false allegations against Plaintiff, the arraigning Judge set bail on Plaintiff.

31. Plaintiff was unable to make his bail and was transferred to Riker's Island.

32. Plaintiff was not ever able to post bail, but was released pursuant to CPL 180.80 when the People failed to secure an indictment.

33. On information and belief, Plaintiff was released on July 12, 2019.

34. Plaintiff missed work all five days that week as a result of his false arrest.

35. Plaintiff was working at Burlington Coat Factory in Kings Plaza, and was paid approximately \$400 per week.

36. On November 26, 2019, the criminal case against Plaintiff was dismissed and sealed.

37. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

38. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

39. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

40. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

41. The unlawful search, seizure, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain humiliation, deprivation of liberty, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

42. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

43. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

44. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

45. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

46. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

47. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

48. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

49. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

50. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

51. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

52. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

53. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

54. The use of excessive force by defendants by, amongst other things, roughly handcuffing, punching Plaintiff and dragging Plaintiff into the holding cell bathroom constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION

Failure to Intervene

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

56. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

57. Defendants failed to intervene to prevent the unlawful conduct described herein.

58. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent injury, his liberty was restricted for an extended period of time, he was put in fear of his safety, his injuries worsened, he did not receive necessary medical treatment, and he was humiliated and subject to other physical constraints.

59. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

60. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

**Violation of Fourth And Fourteenth Amendment Rights:
Denial of Right to Fair Trial/Due Process**

61. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

62. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

63. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

64. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

65. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

66. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

SEVENTH CAUSE OF ACTION
Malicious Prosecution

67. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

68. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

69. Defendants commenced and continued a criminal proceeding against Plaintiff.

70. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

71. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

JURY DEMAND

72. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
February 3, 2022

Yours, etc.

Cary London

Cary London, Esq.
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TO: DET. ADAM GIERLACHOWSKI, 1086 Simpson Street, 3rd FL, Bronx, NY 10459
DET. JAMES LUKESON, 67 PCT, 2820 Snyder Ave, Brooklyn, NY 11226

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 3, 2022

Cary London

CARY LONDON